MINUTES OF THE CLARE COUNTY BOARD OF COMMISSIONERS

Approved 3/19/25

225 W. Main St.
Harrison, Michigan 48625

~~Un~~approved minutes
February 19, 2025

Meeting was called to order at 9:00 a.m.

Pledge of Allegiance to the Flag of the United States of America

District 1 Marlene Housler, District 2 Dale Majewski, District 3 Jacob Gross, District 4 Jeff Haskell, District 5 David Hoefling, District 6 Jack Kleinhardt, District 7 Gabe Ambrozaitis, District 8 George Gilmore and District 9 Rick Fancon

COMMISSIONERS ABSENT

None

OTHERS PRESENT

Clerk & Register of Deeds Lori Mott, Administrator Lori Phelps, Deputy Clerk & Register of Deeds Isha Walter, members of the public and zoom participants

APPROVAL OF AGENDA

It was moved by Commissioner Majewski, seconded by Commissioner Fancon to approve the agenda, **motion carried**

APPROVAL OF MINUTES

It was moved by Commissioner Housler, seconded by Commissioner Haskell to approve the Board of Commissioners Minutes of January 15, 2025 and the Committee of the Whole Minutes of February 5, 2025; along with the Board of Commissioners Closed Session Minutes of September 18, 2024 and Closed Session Minutes of February 5, 2025, **motion carried**.

GENERAL PUBLIC COMMENT

A citizen expressed concern regarding the optics of increasing the Prosecuting Attorney's wages after he expressed satisfaction with his current wage. Chairman Gilmore explained that the Wage and Personnel Committee recently conducted a wage study and it was determined that the wage was slightly under average in comparison to surrounding counties. Therefore, the committee decided to take him up to average over a three year period. Additionally, the citizen expressed concern regarding the former prosecuting attorney's lawsuit against Clare County. Chairman Gilmore replied that the Board of Commissioners is meeting with the attorney today in a closed session.

ADMINISTRATOR'S REPORT

Administrator Lori Phelps provided the Commissioners with an update regarding the Cyber Security Audit that has been ongoing for some time, it will be complete within the next week. She has been working with Treasurer Beemer-Fritzinger and the Bond counsel to finalize information for the Road Commission. She also mentioned that Charter/Spectrum is expanding their fiber print in the county. The plan set last year to update all Windows systems will be complete by October 14, 2025. An update from the Governor's office came through stating that counties will receive a proposed 4% increase in revenue sharing, however it does not apply to the entire revenue sharing base from 2025.

CLOSED SESSION

It was moved by Commissioner Hoefling, seconded by Commissioner Ambrozaitis to meet in closed session under section 8(h) of the Open Meetings Act, to consult with the attorney to discuss the attorney's written opinion, roll call vote revealed:

Yeas: (9) being Commissioners Fancon, Kleinhardt, Housler, Gilmore, Haskell, Majewski, Gross, Hoefling and Ambrozaitis
Nays: (0)
Absent: (0)
Motion carried

Entered into closed session at 9:14 a.m.
Back in open session at 10:20 a.m.

PHYSICAL RESOURCES AND ECONOMIC DEVELOPMENT

1. Lake Level Resolutions
   Clare County Drain Commissioner Bill Faber proposed two resolutions to the Board of Commissioners for Doc and Tom Lake and Cranberry Lake. The Michigan Department of Environment, Great Lakes and Energy (EGLE) has given them an ultimatum to resolve the issues on both lakes. Attorney Kyle O'Meara of Fahey, Schultz, Burzych, Rhodes PLC was present via Zoom to explain the resolution process.

   It was moved by Commissioner Ambrozaitis, seconded by Commissioner Gross to adopt Resolution #25-06 for Doc and Tom Lake and Resolution #25-07 for Cranberry Lake pursuant to MCL 324.30701, roll call vote revealed:

   Yeas: (9) being Commissioners Majewski, Fancon, Hoefling, Kleinhardt, Ambrozaitis, Haskell, Gilmore, Housler and Gross
   Nays: (0)
   Absent: (0)
   Motion carried

FINANCE AND ADMINISTRATION

1. Statutory Finance Committee
   It was moved by Commissioner Housler, seconded by Commissioner Majewski to approve Statutory Finance Committee meeting minutes of January 21, 2025 in the amount of $147,035.56 and the meeting minutes of February 3, 2025 in the amount of $103,004.97, roll call vote revealed:

   Yeas: (9) being Commissioners Haskell, Gilmore, Ambrozaitis, Housler, Hoefling, Kleinhardt, Fancon, Gross and Majewski
   Nays: (0)
   Absent: (0)
   Motion carried

2. Monthly Expenditures
   It was moved by Commissioner Fancon, seconded by Commissioner Housler to approve the expenditures for the month of January 2025 in the amount of $2,821,908.78 with the General Fund expenditures totaling $1,085,308.30, roll call vote revealed:

   Yeas: (9) being Commissioners Gross, Kleinhardt, Hoefling, Majewski, Gilmore, Ambrozaitis, Housler, Haskell, and Fancon
   Nays: (0)
   Absent: (0)
   Motion carried

FINANCE AND ADMINISTRATION - continued

3. Budget Adjustments: None

4. Maintenance Credit Card
   It was moved by Commissioner Kleinhardt, seconded by Commissioner Gross to approve a county credit card with a $3,000 limit for the Maintenance Department, roll call vote revealed:

   Yeas: (9) being Commissioners Fancon, Gross, Hoefling, Haskell, Majewski, Kleinhardt, Gilmore, Housler and Ambrozaitis
   Nays: (0)
   Absent: (0)
   Motion carried

5. Added Alternate Signer
   It was moved by Commissioner Housler, seconded by Commissioner Fancon to appoint Commissioner Majewski as an additional signer to the County accounts in the event the Administrator is incapacitated, **motion carried.**

6. Land Bank Appointment
   It was moved by Commissioner Haskell, seconded by Commissioner Majewski to appoint Ross Wilson as the Farwell area representative to the Land Bank Board, **motion carried**.

CLERK/REGISTER OF DEEDS REPORT

Clerk & Register of Deeds Lori Mott announced that Clare-Gladwin RESD, Osceola County ISD and Hayes Township all filed renewal millages for the May 6, 2025 Election. This will be countywide, except for Redding Township. Redding Township does not have any of these items in their district.

TREASURER'S REPORT

Treasurer Jenny Beemer-Fritzinger provided all the updated statutory reports to the Commissioners. The Treasurer's office is busy with all three current tax deadlines and dog license renewals. Notices were recently sent out to potential claimants whose property or interest was foreclosed and sold in an auction from 2013-2020. This keeps in line with the new Supreme Court ruling in Schafer v Kent County. The deadline to file a notice of intent to claim the possible proceeds is March 31, 2025.

Treasurer Beemer-Fritzinger announced another one-stop shop rabies vaccination and dog license clinic will take place February 22, 2025 at the animal shelter for Clare County residents.

CHAIRMAN'S REPORT

Chairman George Gilmore had nothing to report, but clarified with Attorney Bonny Toskey regarding the county policy on contacting her office. The policy reads that board members may contact her office regarding board business and requests from department heads and elected officials should contact the Administrator first. Attorney Toskey confirmed that would be correct if that is what the county policy states.

VICE CHAIRMAN'S REPORT

Vice Chairman Rick Fancon had nothing to report.

COMMISSIONER'S REPORT

Commissioner Housler had nothing to report.

Commissioner Ambrozaitis reported that the next Airport meeting will be held February 25, 2025 at 4:00 pm in the Board of Commissioners' room.

Commissioner Hoefling has attended his meetings and gave a report on each of the townships and committees he represents.

Commissioner Kleinhardt reported that windmills and solar cells are a possibility in his townships in Clare County.

Commissioner Haskell had nothing to report.

Commissioner Gross gave a brief report on the committees and meetings he attended.

Commissioner Majewski had nothing to report.

STATE OF THE COUNTY BUDGET

Administrator Phelps reported that the budget should be 41.67% expensed. It is currently 31.4% expensed. Last year at this time it was 38.57% expensed. Clare County has received 14% of all revenue but that is not unusual this time of year.

PUBLIC COMMENT

Lisa Ashley, the Recovery Court Director, gave special recognition to Treasurer Jenny Beemer-Fritzinger for her help with the program fees she collects, to Clerk & Register of Deeds Lori Mott for her Chief Deputy Clerk Stacy Pechacek's invaluable help as a member of the Clare County Recovery Court team and also to Administrator Lori Phelps for keeping up with the recovery court budget and helping when needed. Ms. Ashley reiterated to the Board of Commissioners that they have a really great staff and elected officials working for Clare County.

NEW BUSINESS

Zoom Discussion
The Commissioners had a discussion on whether they want to continue to zoom the Board of Commissioners' meetings. A couple commissioners mentioned that due to distance and time of meetings that some members of the public are not able to attend the meetings in person so the Zoom recordings are necessary. It was also brought up that posting the meetings on the website again would be a benefit to the community that cannot take time during the middle of the day to watch and could watch at their convenience. The Commissioners will continue this discussion at the March 5, 2025 Committee of the Whole meeting.

It was moved by Commissioner Majewski, seconded by Commissioner Housler to adjourn the meeting at 11:15 a.m., **motion carried**.

Lori Mott, Clerk
Clare County Board of Commissioners

George Gilmore, Chairman
Clare County Board of Commissioners